

1	Goldman vs. Plastic Surgery Group, A Medical Corporation 30-2026-01548884	<u>Demurrer</u> Defendants Michael W. Niccole, M.D.'s and Michael W. Niccole, A Professional Corporation's Demurrer to Plaintiff's First Amended Complaint is OVERRULED. Defendants Michael W. Niccole, M.D. and Michael W. Niccole, A Professional Corporation shall file an answer or other pleading in response to the First Amended Complaint within 10 days of service of the notice of ruling. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Defendants Michael W. Niccole, M.D. and Michael W. Niccole, A Professional Corporation (Niccole Defendants) demur to the 3rd Causes of Action of First Amended Complaint (FAC) filed by Plaintiff Julia Goldman. <u>Meet and Confer</u> The Civil Procedure Code requires that: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer <i>in person, by telephone, or by video conference</i> with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a), italics added.) The demurrer papers must include a declaration stating that the demurring party has complied with the above requirement. (Code Civ. Proc., § 430.41, subd. (a)(3).) Here, the declaration filed by Nicolle Defendants states that Plaintiff and Nicolle Defendants met and conferred in writing but does not indicate that they communicated in any other manner. (See Decl. of David J. Rubaum, Esq., (Rubaum Decl.), ¶ 4, Exh. A.)
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		This effort was insufficient as the parties are required to meet and confer in person, by telephone, or by videoconference. However, the court may not overrule or sustain a demurrer solely because the meet and confer process was insufficient. (See Code Civ. Proc., § 430.41, subd. (a)(4).) Further, the demurrer is fully briefed. Therefore, the court will decide the motion on the merits. However, Niccole Defendants are encouraged to strictly comply with the requirements of the Civil Procedure Code and Rules of Court in the future. Future violations may result in the court disregarding Niccole Defendants' motion, opposition, or reply papers. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (<i>Jimenez vs. Mrs.</i>
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		<i>Gooch's Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) In addition, the "allegations must be liberally construed, with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) Nonetheless, it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>3rd Cause of Action (Medical Battery)</u> Battery in the medical context "is an intentional tort that occurs when a doctor performs a procedure without obtaining any consent." (<i>Saxena v. Goffney</i> (2008) 159 Cal.App.4th 316, 324.) Thus, medical battery may occur where "a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which [the patient's] consent was not obtained." (<i>Cobbs v. Grant</i> (1972) 8 Cal.3d 229, 239.) In addition, "[i]f the [doctor] exceeds the terms or conditions of the consent, the consent does not protect the actor from liability for the excessive act." (<i>Ashcraft v. King</i> (1991) 228 Cal.App.3d 604, 610; see ; <i>Piedra v. Dugan</i> (2004) 123 Cal.App.4th 1483, 1497–1498 [same].) To plead a claim for medical battery, the patient must allege: (1) the defendant performed a medical procedure or treatment without her consent, or that she consented to one medical procedure, but the physician intentionally performed a substantially different procedure or exceeded the terms of the consent; (2) the patient suffered harm; and (3) defendant's misconduct was a substantial cause of that harm. (<i>Conte v. Girard Orthopaedic Surgeons Medical Group, Inc.</i> (2003) 107 Cal.App.4th 1260, 1269; see also CACI 530A.)
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		Plaintiff's torso," without discussing the procedure with Plaintiff or obtaining her consent, (<i>id.</i>, ¶ 59); 3. As a substantial result of Nicolle Defendants' conduct, Plaintiff was damaged, (see <i>id.</i>, ¶ 60). This is sufficient to make out a claim for medical battery. Nicolle Defendants, however, contend that the 3rd Cause of Action fails pursuant to <i>Cobbs v. Grant</i>. In that case, the plaintiff consented to a surgery without being informed of any of the inherent risks of the surgery. (<i>Cobbs v. Grant, supra</i>, 8 Cal.3d at p. 234.) After undergoing the surgery, the plaintiff experienced several complications, which were a known risk of the surgery and resulted in plaintiff requiring additional surgeries. (<i>Id.</i> at pp. 234-35.) The Supreme Court held that when an undisclosed potential complication results, the occurrence of which was not an integral part of the treatment procedure but merely a known risk, failing to obtain informed consent constitutes negligence. (See <i>id.</i> at pp. 238-40.) The Court in <i>Cobbs v. Grant</i> also ruled that the medical battery theory should be reserved for those circumstances when the patient gives permission for one type of treatment and the doctor performs another. (<i>Id.</i> at p. 240.) Nicolle Defendants argue that the skin incision procedure is part of the breast replacement, breast lift, and liposuction procedure to which Plaintiff had already consented, and therefore, performing the skin incision cannot constitute medical battery. However, the FAC makes it clear that Plaintiff considers it to be a separate and different surgical procedure. (See <i>id.</i>, ¶¶ 24, 59.) On demurrer, the court must accept as true all facts properly pleaded in the FAC and anything that may be reasonably inferred from the facts alleged in FAC. Further, the case law is clear that this court cannot decide whether one medical procedure is the same
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		or part of another medical procedure at the demurrer stage. In <i>Kaplan v. Mamelak</i> (2008) 162 Cal.App.4th 647, the Court of Appeal noted that while “<i>Cobbs</i> offers several examples of medical battery based on a physician's performance of a substantially different procedure[,] [t]he examples do not seem to lend themselves to any overarching test for deciding at the margin whether a medical procedure is ‘substantially different’ from the authorized procedure, and <i>Cobbs</i>’s description of them offers little guidance.” (<i>Id.</i> at p. 646.) The <i>Kaplan v. Mamelak</i> Court ultimately held that: In the absence of any definitive case law establishing whether operating on the wrong disk within inches of the correct disk is a “substantially different procedure,” we conclude the matter is <i>a factual question for a finder of fact to decide and, at least in this instance, not one capable of being decided on demurrer.</i> (<i>Id.</i> at p. 647, italics added; see also <i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 670 [“As in <i>Kaplan</i>, whether this alleged conduct was within the scope of plaintiff's consent ‘is a factual question for a finder of fact to decide and, at least in this instance, not one capable of being decided on demurrer.’”], quoting <i>Kaplan v. Mamelak</i> (2008) 162 Cal.App.4th at p. 647.) Whether skin excision was the same as or part of breast replacement, breast lift, and liposuction is a factual question which the court cannot decide at this stage, and the court must accept as true the allegations of the FAC that skin excision is a different procedure for which she did not consent. Therefore, the court will overrule the demurrer to the 3rd Cause of Action. Plaintiff shall give notice of this ruling.
2	Borchard vs. Baumer of America, Inc. 30-2026-01565999	<u>Application to Appear Pro Hac Vice</u> The Application of Moritz C. Schumann to Appear as Counsel Pro Hac Vice is CONTINUED to December 22, 2026 at 9:00 a.m. in Department N15.